HEADNOTE

> *"Since the imposition of a security for legal costs constitutes a restriction of the right to an effective remedy before a court, the need to protect the defendant has to be weighed against the burden on the claimant caused by an order to provide a security. There should be no unjustified interference with the claimant's right to an effective remedy and to a fair hearing. The fact that the Claimant is located in the United States and that we, for obvious reasons, still lack experience from enforcing orders by the UPC in the United States, is not in itself sufficient for ordering security for costs."*

COURT
Nordic-Baltic Regional Division

PROCEEDINGS
Infringement action

PATENT
EP3769722

LOW PROFILE DELIVERY SYSTEM FOR TRANSCATHETER HEART VALVE

KEYWORDS

- Request for security for legal costs
- Article 69.4 UPCA and Rule 158 RoP

SUMMARY
The Nordic-Baltic Regional Division ruled on an infringement action. The patent at issue relates to a low profile delivery system for transcatheter heart valve. According to the headnotes of the decision, courts must balance the defendant's need for cost protection against the claimant's burden when ordering security. The claimant's right to an effective remedy must not be unjustifiably restricted. Furthermore, merely because the claimant is located in the United States is insufficient grounds for imposing security. The court also noted that the lack of UPC enforcement experience in the United States does not alone justify such an order.